

Justification and Approval for Other than Full and Open Competition

“Source Selection Information – see FAR 2.101 and 3.104”

1. Identification of the agency and contracting activity.

a. Federal agency and contracting activity.

Department Health and Human Services (DHHS), National Institutes of Health (NIH)

b. Sponsoring organization. Office of the Director (OD), Office of Research Services (ORS), Events Management Branch (EMB)

c. Project Officer information.

- Contracting Officer's Representative Name: [REDACTED]

- Mailing address:

[REDACTED]

- E-mail address: [REDACTED]

- Telephone number: [REDACTED]

2. Nature and/or description of the action being approved.

- a. **Acquisition purpose and objectives.** The purpose of this acquisition is to extend the ordering period and ceiling of the current contract to meet the needs of the NIH for sign language and interpreting services. The ORS Interpreting Services Program, Events Management Branch (EMB), is centrally managed and funded to deliver essential communication services NIH-wide to deaf and hard of hearing employees, patients, and visitors, requesting an accommodation under Section 504 of the Rehabilitation Act. Since 2015, the program has grown to become the largest contract of its kind in the Federal Government, attracting Deaf researchers and other talent to NIH and developing a reputation for providing quality and dependable accommodation services easy to schedule and manage. Services include but are not limited to American Sign Language (ASL) Interpreting (basic and scientific) and Computer Assisted Real-time Transcription (CART) delivered onsite and online by an experienced professional services provider. For patients and their families, these services are delivered round the clock including weekends, holidays and during Government shutdowns, and must include a Continuity of Operations Plan.

Specifically, this Justification and Approval is being requested to prevent a lapse in service for a period of five (5) months (estimated period, April 1, 2025 through August 31, 2025) to support performance of the

objectives stated above during the acquisition planning, negotiation, and award of the competitive small business set-aside requirement under Request for Proposal (RFP) No. 75N98025R00007 for American Sign Language Interpreting and CART accommodation services, required under Section 504, and Captioning and other accessibility services, required under Section 508 of the Rehabilitation Act. The requirement will be awarded for a base period of one-year with four (4) one-year option periods.

Furthermore, delays occurred during the acquisition planning phase because procurement and contract actions were paused to follow the HHS Acting Secretary's directive "Immediate Pause on Issuing Documents and Public Communications – Action" (January 21, 2025). Additionally, our office has received numerous data calls based on Executive Orders issued by the President of the United States of America; therefore, we were required to respond and complete actions expeditiously to ensure compliance.

- b. **Project background.** The proposed action is to extend Contract No. 75N98019D00055 with Access Interpreting, Inc. entitled "Sign Language Interpreting Services," which was awarded on September 14, 2019, as a single award Indefinite Delivery/Indefinite Quantity (IDIQ), Performance-Based type contract for a period of five years (based period and four (4) option periods) and additional 6 months and 2 weeks under the authorities of FAR 52.217-8 Option to Extend Services and FAR 52.237-3 Continuity of Services, and increased the ceiling from [REDACTED] to [REDACTED]. The contract resulted from a small business set-aside competitive acquisition.

3. Description of the supplies or services required to meet the agency's needs (including the estimated value).

- a. **Project title:** Sign Language Interpreting Services
- b. **Project description:** As noted above in the section titled "Acquisition purpose and objective," the Contractor will provide essential communication services NIH-wide to Deaf and Hard of Hearing employees, patients, and visitors, requesting an accommodation under Section 504 of the Rehabilitation Act. Furthermore, patients and their families need these services to be delivered round the clock including weekends, holidays and during Government shutdowns. These services are detrimental to human safety.

Attached is the Performance Work Statement (PWS) for this contract which describes the requirements for successful completion of performance under this contract.

- **Requirement type.**
 - ☐ Research & development (R&D)
 - ☐ R & D support services

- ☒ Support services (non-R&D)
- ☐ Supplies/equipment
- ☐ Information technology (IT)
- ☐ Construction
- ☐ Architect-engineer (A & E) services
- ☐ Design-build
- ☐ Other (specify): _____

• **Type of action.**

- ☐ New requirement
- ☒ Follow-on – Contract Extension
- ☐ Other (specify): _____

• **Proposed contract/order type.**

- ☒ Firm-fixed-price
- ☐ Other fixed-price (specify, e.g., fixed-price award-fee, fixed-price incentive-fee): _____
- ☐ Cost-plus-fixed-fee
- ☐ Other cost reimbursement (specify, e.g., cost-plus-award-fee, cost-plus-incentive-fee): _____
- ☐ Time and materials
- ☒ Indefinite delivery Indefinite Quantity
- ☐ Other (specify): _____
- ☐ Completion Form ☐ Term form

• **Acquisition identification number: 75N98019D00055**

c. Total estimated dollar value and performance/delivery period.

The current ceiling of this acquisition is [REDACTED]. This J&A will increase the contract ceiling by an estimated [REDACTED] from [REDACTED] to [REDACTED]. The extension period will be April 1, 2025 to August 31, 2025.

4. Identification of the statutory authority permitting other than full and open competition.

- ☐ This acquisition is conducted under the authority of 41 United States Code (U.S.C.) 253(c)(1) as set forth in Federal Acquisition Regulation (FAR) 6.302-1.
- ☐ This acquisition is conducted under the authority of section 4202 of the Clinger-Cohen Act of 1996.
- ☐ This acquisition is conducted under the authority of the Services Acquisition Reform Act of 2003 (41 U.S.C. 428a).
- ☒ This acquisition is conducted under the authority of 41 U.S.C.

3304(a)(2) as set forth in FAR 6.302-2 Unusual and Compelling Urgency.

5. Demonstration that the proposed contractor(s) unique qualifications or the nature of the acquisition requires use of the authority cited.

a. Name and address of the proposed contractor(s).

Access Interpreting, Inc.

200 Lawyers Road NW 1993

Vienna, VA 22180

b. Nature of the acquisition and proposed unique qualifications of the contractor(s). The ORS, EMB, requires an extension of time in the ordering period and increase in the contract.

Access Interpreting, Inc. (Access) is the current contractor providing sign languages interpreting services. The contract held by Access provides essential communication services NIH-wide to Deaf and hard of hearing employees, patients, and visitors, requesting an accommodation under Section 504 of the Rehabilitation Act. Any interruption of the services being provided by Access through the current contract and the award of the follow-on contract could result in Deaf patients being unable to communicate with their clinical care team about their health and treatment options. Additionally, disruption of these services would severely impact patients and their families, and ongoing research projects and studies involving human or animal safety and healthcare, being conducted by Deaf researchers.

Access Interpreting has been providing services under this contract since 2019 and they have all the necessary professional service providers and scheduling system and procedures in place to deliver these services at scale, which in FY2024 was over 71,000 hours. It is the only vendor that can provide seamless support for this requirement, for the limited period of April 1, 2025 through August 31, 2025, which is the time needed to complete the re-competition process for the follow-on contract.

Based on the above, this requirement can only be satisfied by the current vendor through a modification to extend the period of performance and contract ceiling.

6. Determination by the Contracting Officer that the anticipated cost/price to the Government will be fair and reasonable. An Independent Government Cost Estimate (IGCE) has been developed based on the cost history of the current Access Interpreting, Inc. contract over the past five (5) years. As such, the IGCE (see attached for a breakdown of costs) and historical costs will be used as a reference point to conduct a price analysis to establish the fairness and reasonableness of prices. Based on the above, the Contracting Officer will be able to negotiate fair and reasonable prices.

7. Description of the market research conducted (see FAR Part 10) and the results, or a statement of the reasons market research was not conducted.

A Pre-solicitation Notice/Notice of Intent to Sole Source was published on SAM.gov on March 18, 2025. This notice described the work to be performed and the intent to negotiate on a sole source basis and provided responsible sources with the opportunity to submit capability statements. Four capability statements were received. Based on the review of the responses, the four vendors did not demonstrate the capabilities. As a result, we are extending the ordering period, in order to award the follow-on contract with adequate transition time so that the potential vendors have appropriate time for transition. In conclusion, market research has demonstrated that there are no other vendors that demonstrated capability to provide continued services to the NIH by the beginning of the ordering period extension date, April 1, 2025 – August 31, 2025. Only the current Contractor can meet the Government's requirement.

8. Any other facts supporting the use of other than full and open competition.

A non-competitive award to Access Interpreting, Inc. is in the best interest of the Government. It is impracticable to seek competition for the five (5) month period while completing the ongoing competitive acquisition process for RFP No. 75N98025R00007. The statutory authority justifying this acquisition 41 U.S.C.3304(a)(2) as set forth in FAR 6.302-2 Unusual and Compelling Urgency provides that other than full and open competition is appropriate for follow-on contracts when it is likely that the award of a contract to another source would result in substantial duplication of cost to the Government that would not be expected to be recovered through competition or that unacceptable delays would result. Delays would put patients at risk as well as deaf employees who work in NIH labs performing research.

9. Listing of sources, if any, that expressed, in writing, an interest in the acquisition. On March 18, 2025, a Pre-solicitation Notice of Intent to Sole Source was published on SAM.gov to notify the public that the NIH, Office of Acquisitions (OA), Office of Logistics and Acquisition Operations (OLAO), on behalf of the ORS, EMB, intends to negotiate on a sole source basis with the incumbent Contractor, Access Interpreting, Inc., to retain the services to provide to employees, patients, and visitors, requesting an accommodation under Section 504 of the Rehabilitation Act during the five (5) month extension. In response to the Notice of Intent, four capability statements were received and reviewed. All the vendors were determined to be incapable.

10. Statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the required supplies or services. The Office of Acquisitions (OA), Office of Logistics Acquisition Operations (OLAO), is in the process of recompeting the current contract. We anticipate awarding a follow-on contract by the end of August 2025.

12. Program office certification.

This is to certify that the portions of this justification that have been developed by the undersigned program office personnel, including supporting information and/or data verifying the Government's minimum needs, schedule requirements and other rationale for other than full and open competition, are accurate and complete.

Official	Name & Title	Signature	Date
Contracting Officer's Representative	[REDACTED]	[REDACTED]	[REDACTED]
Contracting Officer's Immediate Supervisor	[REDACTED]	[REDACTED]	[REDACTED]
Head of the Sponsoring Program Office	[REDACTED]	[REDACTED]	[REDACTED]

13. Contracting Officer certification.

This is to certify that the justification for the proposed acquisition has been reviewed and that to the best of my knowledge and belief the information and/or data provided to support the rationale and recommendation for approval is accurate and complete.

Official	Name & Title	Signature	Date
Contracting Officer	[REDACTED]	[REDACTED]	[REDACTED]
Contracting Officer's Immediate Supervisor	[REDACTED]	[REDACTED]	[REDACTED]

Chief of the Contracting Office	[REDACTED]	[REDACTED]	[REDACTED]
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14. Head of the Contracting Activity signature.

Official	Name & Title	Signature	Date
Head of the Contracting Activity	[REDACTED]	[REDACTED]	[REDACTED]

15. Competition Advocate signature.

Official	Name & Title	Signature	Date
Competition Advocate	[REDACTED]	[REDACTED]	[REDACTED]